

7	Matassa vs. Ramirez 2025-01514585	Motion for Preference <i>Continued to 7/23/26. See minute order dated 6/8/26.</i>
8	Mercedes-Benz Vehicle Trust, a Delaware statutory trust, successor by merger to Daimler Trust vs. Williams 2024-01448690	Demurrer to Cross-Complaint Plaintiff/Cross-Defendant Mercedes-Benz Vehicle Trust, successor by merger to Daimler Trust, as serviced by its attorney in fact, Mercedes-Benz Financial Services USA, LLC's ("Cross-Defendant") demurrer to Defendant/Cross-Complainant Cylinder Enterprises, Inc. dba Finish Line Towing & Transport's ("Cross-Complainant") Cross-Complaint is SUSTAINED. (Code Civ. Proc. §430.10, subd. (e).) Cross-Complainant may file a First Amended Cross-Complaint within 20 days of this ruling to address the pleading deficiencies identified below. Cross-Defendant has established compliance with Code Civ. Proc. §430.41. (See Caley Decl. ¶8 [telephonic meet and confer on 4/14/26].) Cross-Defendant's Request for Judicial Notice is GRANTED in PART. (Evid. Code §452, subd. (c).) The Court takes judicial notice of Exhibit "5" of Plaintiff's Verified Complaint. (ROA 2 at pp. 26-27.) Exhibit "5" is a notice of application for lien sale regarding the subject vehicle generated by the California Department of Motor Vehicles on 12/27/23. This document is subject to judicial notice under Evidence Code section 452, subdivision (c) because it is an official act of an executive department of the State of California. Accordingly, the Court takes judicial notice of the fact that the Department of Motor Vehicles sent the notice pursuant to Civil Code section 3071, subdivision (b) on December 27, 2023. The Request for Judicial Notice is DENIED to the extent Moving Party seeks the court to take judicial notice of the truth of any allegations of the Verified Complaint. <u>Meet and Confer</u> Defendant complied with the requirements of Code Civil Procedure section 430.41, subdivision (a)(1). Defendant submits the declaration of Rebecca Caley which provides that the parties engaged in a telephonic meet and confer on 4/14/26 and were unable to resolve the issues raised in the demurrer and motion to strike. (See Caley Decl. ¶8.)